

RFAs

Plaintiff argues that Defendant failed to serve verified substantive responses to Requests for Admission, Set One (“RFAs”), nos. 1 and 6-11. Plaintiff contends that the requests properly seek facts regarding the alleged malpractice. Plaintiff requests \$3,210 in sanctions.

In opposition, Defendant argues that the requests call for conclusions, expert opinions, and speculation. Defendant asserts that objection-only responses did not require verification. He nonetheless submits a belated verification. He also argues Plaintiff’s separate statement inaccurately reproduces the responses to nos. 8-11. He requests \$1,620 in cross-sanctions.

Defendant correctly argues that objection-only responses need not be verified. (CCP § 2033.240(a).) Nevertheless, “when a party is served with a request for admission concerning a legal question properly raised in the pleadings he cannot object simply by asserting that the request calls for a conclusion of law. He should make the admission if he is able to do so and does not in good faith intend to contest the issue at trial, thereby ‘setting at rest a triable issue.’ [citation.] Otherwise he should set forth in detail the reasons why he cannot truthfully admit or deny the request.” (*Burke v. Superior Court* (1969) 71 Cal.2d 276, 282.)

Nos. 1, 6, & 7 concern whether Plaintiff had “a meritorious and sufficient defense” to the *Geaux Industries* matter, whether Defendant “failed to respond to the summons and complaint” in *Geaux Industries*, and whether Defendant “failed to attempt to set aside the default judgment entered against Plaintiff” in that case. Defendant’s objections do not justify refusing to answer.

The separate statement, however, appears to reproduce the response to no. 7 as the response to nos. 8-11, according to Defendant. Plaintiff did not substantively address this contention with his reply. A separate statement must accurately reproduce the text of each disputed response (CRC rule 3.1345(c)(2)), and Plaintiff failed to do so here. The court denies the motion as to nos. 8 to 11.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2505034	PISCOPO vs CGP MAINTENANCE & CONSTRUCTION SERVICES, INC	MOTION FOR LEAVE TO INTERVENE

Tentative Ruling: Intervenor BERKSHIRE HATHAWAY GUARD INSURANCE COMPANIES’ unopposed Motion to intervene is granted.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2505180	CITY OF RIVERSIDE vs LOPEZ	MOTION TO APPOINT RECEIVER

Tentative Ruling: Petitioner City of Riverside’ Motion to Appoint a Receiver is granted.

REQUEST FOR JUDICIAL NOTICE

The Court grants City's RJN as to Exhibits A and B, which are different sections of the RMC. (Evid. Code, § 452, subd. (b); see *Salinero v. Pon* (1981) 124 Cal.App.3d 120, 133; *Velez v. Smith* (2006) 142 Cal.App.4th 1154, 1168, fn. 7.)

Health and Safety Code section 17980.6 states, in pertinent part: "If any building is maintained in a manner that violates any provisions of this part, the building standards published in the State Building Standards Code relating to the provisions of this part, any other rule or regulation adopted pursuant to the provisions of this part, or any provision in a local ordinance that is similar to a provision in this part, and the violations are so extensive and of such a nature that the health and safety of residents or the public is substantially endangered the *enforcement agency may issue an order or notice to repair or abate* pursuant to this part..." (Emphasis added.)

Health and Safety Code section 17980.7, subdivision (c) authorizes the court to appoint a receiver to oversee the rehabilitation of substandard properties if the property owner fails to comply with an order or notice to repair issued by a local code enforcement agency pursuant to section 17980.6. "[A]n enforcement agency may issue a notice to an owner to repair or abate property conditions that violate state or local building standards and substantially endanger the health and safety of residents or the public." (*City of Santa Monica v. Gonzalez* (2008) 43 Cal.4th 905, 912 ["*Gonzalez*"). If the owner does not correct the conditions within a "reasonable time" after the notice or order is issued, section 17980.7, subdivision (c) authorizes the enforcement agency to seek, by court petition, the appointment of a receiver to "assume control over the property and remediate the violations or take other appropriate action." (*Id.*)

In addition to the authority provided by section 17980.7, the appointment of a receiver is authorized under the general principles of law. The court has inherent power to appoint a receiver when necessary to accomplish some judicial objective. (*McCarthy v. Poulsen* (1973) 173 Cal.App.3d 1212, 1219.) In *City and County of San Francisco v. Daley* (1993) 16 Cal.App.4th 734, the court upheld the exercise of discretion by a court to appoint a receiver to oversee the rehabilitation of a substandard single-family residence in San Francisco after the property owners failed to comply the city's code enforcement directives. (*Id.* at 744.)

"A receivership pending suit is a provisional, equitable remedy." (*Southern Cal. Sunbelt Developers, Inc. v. Banyan Ltd. Partnership* (2017) 8 Cal.App.5th 910, 922, 925[.]) "A receiver is an agent and officer of the court, and is under [the court's] control and supervision..." (*City of Chula Vista v. Gutierrez* (2012) 207 Cal.App.4th 681, 685 [citing Code Civ. Proc., § 568; Cal Rules of Court, rule 3.1179 ["*Gutierrez*"].) "The receiver is an agent of the court and not of any party, and as such: (1) Is neutral; (2) Acts for the benefit of all who may have an interest in the receivership property; and (3) Holds assets for the court and not for [any party]." (Cal. Rules of Court, rule 3.1179(a); see *Lesser & Son v. Seymour* (1950) 35 Cal.2d 494, 499.) A "receiver is also a fiduciary who must act for the benefit of all parties interested in the property." (*Gutierrez, supra*, 207 Cal.App.4th at 685; see also *Shannon v. Superior Court* (1990) 217 Cal.App.3d 986, 992.)

MERITS

City moves for an order (1) granting the receiver authority with respect to the Property as set forth in Health & Safety Code section 17980.7, subdivision (c) and Code of Civil Procedure section 568, (2) enjoining Defendants from continuing the nuisance activity; (3) enjoining Defendants from collecting rent or income from the Property, from interfering with the receiver in the management and rehabilitation of the Property, and from transferring or encumbering any interest in the Property during the receivership period pursuant to Health and Safety Code section 17980, subdivision (c)(3); ordering Defendants to be enjoined from claiming any deduction with respect to State taxes for interest, taxes, expenses, depreciation, or amortization paid or incurred with respect to the Property throughout the duration of this action under Health and Safety Code section 7, subdivision (b)(1).)

City's petition includes a declaration by Code Enforcement Officer Ruth Mendoza ("Mendoza") who testifies to the history of notices, warnings, and citations City issued to Defendants relating to the Property since August 2014 due to a 1,098 square foot second story addition, constructed without required building permits. (Mendoza Decl., ¶¶6.) Copies of photos, notices, warnings, and citations are provided in Mendoza's declaration. (*Id.* at 7-26, Exhs. A-P.)

On October 11, 2018, an Administrative Civil Penalties hearing was held, at which the hearing officer imposed daily fines of \$100 until the violation is corrected. (*Id.* at ¶¶27, Exh. Q.) From November 19, 2018 to January 14, 2021, Code Enforcement inspected the Property at least 10 times and observed the violations from the October 2018 hearing were not corrected. (*Id.* at ¶¶28-30; Exhs. R-T.) On March 24, 2026, the violations were still not corrected. (*Id.* at ¶¶35.)

On March 15, 2025, Mendoza posted a 3-day Receivership at the Property. (Mendoza Decl., ¶¶32, Exh. V.) Mendoza testified that Code Enforcement has responded to the Property at least 36 times and issued at least 12 notices, citations, and warnings to Defendants since August 2014. (*Id.* at ¶¶36.) As of the date of Mendoza's declaration on April 10, 2026, Defendants failed to make a good faith effort to provide City with a schedule of anticipated performance and rehabilitation. (*Ibid.*)

The evidence strongly demonstrates Defendants have been given ample reasonable opportunity to bring the Property into compliance but have failed to do so. City has also complied with all of the procedural prerequisites for the appointment of a receiver. As to Defendants' argument that the last inspection was May 2025, this is erroneous as Mendoza testified from May of 2025, through March 24, 2026, Defendants have not contacted Code Enforcement, and there are no permits on file for the Property. (Mendoza Decl., ¶¶35.) Moreover, as of the date of Mendoza's signed declaration on April 10, 2026, Defendants failed to provide City with a schedule of anticipated performance and rehabilitation or make adequate efforts to abate and maintain the Property in compliance with Health and Safety Code and RMC. (*Id.* at ¶¶36.) This was four months ago. Thus, there is no "gap" in the present physical conditions as Defendants erroneously argue. Mendoza testifies that the conditions pose an imminent threat to the health and safety of the surrounding neighborhood. (*Ibid.*)

Defendants also argue the proposed receiver requests broad operation and financial authority. Defendants take issue with Randolph's compensation structure and qualifications. These arguments are unavailing. Although the petition does not formally identify a proposed receiver, Kevin K. Randolph submitted a declaration identifying himself as the "receiver-nominee" in this matter and describing his qualifications, including education and training. (Randolph Decl., ¶¶1-3.) Randolph testifies that he has been appointed as a receiver or receiver's representative in over 230 Health and Safety Code and related receivership cases by the California courts, involving single-family, multi-family, and retail/commercial properties. (*Id.* at ¶¶3-4.) He outlines the actions he would undertake if appointed, including securing, evaluating, and coordinating the rehabilitation of the Property. (*Id.* at ¶¶5-10.) This is sufficient to demonstrate that Randolph is a qualified receiver.